

		alleges that the Morningside Property did not meet the requirements of Laguna Beach Municipal Code §25.08.004 as a “building site” because of the lack of access without an easement, thus explaining how the granting of project approval and the easement were intertwined components of the same decision. (FAP ¶26, 28) Based on the allegations in the petition, it is apparent that Petitioner seeks to challenge the entire decision to allow construction on the Morningside property. While Petitioner claims he is not challenging discretionary development approvals but is instead challenging “illegal” conduct, the gravamen of the action is to challenge the City’s decision to approve the RPI project, which included granting the easement. (See, <i>AIDS Healthcare Foundation v. City of Los Angeles</i> (2022) 86 Cal.App.5th 322, 337-338; see also, <i>Weiss v. City of Del Mar</i> (2019) 39 Cal. App. 5th 609, 622–624.) Accordingly, the demurrer is SUSTAINED, with 14 days leave to amend. In light of ROA 79, the 8/3/26 OSC re status of unrepresented trustee is vacated. The court continues the status conference from 8/3/26 to 11/2/26 at 8:45am in Dept. C24. City shall give notice.
304	<i>Axos Bank vs. Taylor Heavy Haul, LLC</i>	The court withholds a tentative ruling. Parties shall come prepared to present brief argument and answer questions.
306	<i>Sweet James, LLP vs. Upasani</i>	The motion of defendant Ninad Upasani for an order granting leave to file proposed a cross-complaint is GRANTED. Defendant is ordered to correct the caption on the proposed cross-complaint and then file the original with the Court within 10